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| In the matter of: | ) | |
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| | ) | ISCR Case No. 22-01391 |
| | ) | |
| Applicant for Security Clearance | ) | |

## Appearances

For Government: John C. Lynch, Esq., Department Counsel
For Applicant: Carl Marrone, Esq.

09/24/2026

## Decision

PRICE, Eric C., Administrative Judge:

Security concerns under Guideline B (foreign influence) and Guideline H (drug involvement) are mitigated. Eligibility for access to classified information is granted.

## Statement of the Case

Applicant submitted a security clearance application (SCA) on June 15, 2021. On September 6, 2022, the Department of Defense (DoD) sent him a Statement of Reasons (SOR) alleging security concerns under Guideline H and Guideline E (personal conduct), and Applicant answered the SOR on September 21, 2022. (Hearing Exhibit (HE) I) On September 12, 2023, the Defense Office of Hearings and Appeals (DOHA) withdrew the statement of reasons. (HE II) On January 2, 2024, DOHA issued a second SOR alleging security concerns under Guidelines B and H.

The DoD and DOHA acted under Executive Order (Exec. Or.) 10865, *Safeguarding Classified Information within Industry* (February 20, 1960), as amended; Department of Defense (DOD) Directive 5220.6, *Defense Industrial Personnel Security Clearance Review Program* (January 2, 1992), as amended (Directive); and the adjudicative guidelines (AG) promulgated in Security Executive Agent Directive 4,

*National Security Adjudicative Guidelines* (December 10, 2016), which became effective on June 8, 2017.

Applicant requested a hearing before a DOHA administrative judge in his undated answer to the SOR. (Answer) The case was assigned to me on September 10, 2024. On November 26, 2024, DOHA notified Applicant that the hearing was scheduled to be conducted by video teleconference on January 6, 2025. I convened the hearing as scheduled. Government Exhibits (GE) 1 through GE 3 and Applicant Exhibits (AE) A through AE N, were admitted in evidence without objection. Applicant testified and presented the testimony of three witnesses. The record closed on January 6, 2025, and DOHA received the transcript (Tr.) on January 13, 2025.

## Administrative Notice

Department Counsel requested that I take administrative notice of: (1) certain facts about the Islamic Republic of Pakistan (Pakistan), including a U.S. Department of State Travel Advisory and Country Reports on Terrorism; (2) a Fact Sheet on Relations with Pakistan, and (3) a Drug Enforcement Agency (DEA) fact sheet. (HE III – HE V) I granted Department Counsel's requests for administrative notice, without objection. (Tr. 21-23) The facts administratively noticed are set out below in my findings of fact.

## Findings of Fact

In Applicant's Answer to the SOR, he admitted all allegations, with explanations. His admissions are incorporated in my findings of fact.

Applicant is a 34-year-old research engineer employed by a defense contractor since February 2020. He worked as a systems engineer for a different defense contractor from November 2014 to February 2020. He earned a bachelor's degree in 2014 and a master's degree in 2018. He has held a security clearance since at least January 2015. He married in November 2019 and has a three-year-old child. (GE 1 - GE 3; AE E - AE F, AE L; Tr. 27, 120-22, 145-46)

### Guideline B, Foreign Influence

SOR ¶ 1.a. Applicant's spouse is a citizen of Pakistan, the United Kingdom, and a citizen and resident of the United States. She travels to Pakistan periodically and has numerous relatives and friends who are citizens and/or residents of Pakistan. (Answer; GE 1 at 26-28, GE 3 at 2, 5-6, 12; Tr. 42, 48-74, 111-132, 167-235; AE L)

Applicant's spouse was born in Pakistan, moved to the United States when she was two years old, and was naturalized in 2005 at the age of 11. In about 2007, her parents moved the family back to Pakistan to be near aging family members and stayed until she completed high school. In 2013 they returned to the United States so she could attend college; she earned a bachelor's degree in 2017. Applicant met his future spouse

in 2016; they married in the United States in 2019 and in accordance with Pakistani tradition held multiple celebrations of their marriage in Pakistan.

Applicant's spouse is a prominent professional in the United States and has worked for the same company since 2017. She has no interest in living in Pakistan because her personal values do not align with cultural and societal expectations. She appreciates the freedoms she has as a woman in the United States. She does not have any financial interests in Pakistan and does not believe that she stands to inherit property from her parents or other relatives in Pakistan. If she were to inherit property in Pakistan, she would sell it. She provides financial support of about $70 per month to help pay tuition costs for her former nanny's children in Pakistan. She travelled to Pakistan in 2017, 2018, twice in 2019, and in December 2021. She plans to travel to Pakistan in the future only for significant events such as the marriage of a close friend or if her maternal grandmother's health worsens. She regularly votes in U.S. elections. Her two siblings are native-born U.S. citizens and residents; they are also citizens of Pakistan. (Answer; GE 1 at 26-28, GE 3 at 2, 5-6, 12, 47, 57, 66; Tr. 42-74, 111-46, 151-235; AE L)

Applicant's spouse has many friends (most from high school) who are citizens of Pakistan; some are residents of Pakistan and others are residents of other countries. She periodically communicates with a number of those friends. Applicant and his spouse testified that no relative, friend or other acquaintance of his spouse had ever shown unusual interest in Applicant's work or been involved with or directly affected by terrorism. Except for relatives identified in SOR ¶¶ 1.c and 1.d, and the father-in-law of a person identified in SOR ¶ 1.h (whom neither Applicant nor his spouse had met), Applicant and his spouse were unaware of any other relative or acquaintance of his spouse involved with a military organization, intelligence agency, defense or nuclear industry in Pakistan. (Answer; GE 1 at 48-52, GE 3 at 7-40; Tr. 138-39, 178-212, 221-33)

SOR ¶ 1.b. Applicant's mother-in-law and father-in-law are citizens of Pakistan and citizens and residents of the United States. They were naturalized in 2005, returned to Pakistan for several years, and have lived in the United States since 2013. Both are employed by U.S. companies. His mother-in-law has worked for the same company since 2013, and his father-in-law has worked for the same company since 2022. Their three children and grandchild are all citizens and residents of the United States and their primary connection to Pakistan is that Applicant's spouse's maternal grandmother lives there. Applicant communicates with his parents-in-law monthly and his spouse communicates with them frequently. His parents-in-law own a house in Pakistan worth about $150,000. The house is devoid of furnishings, and they plan to sell it. Applicant's mother-in-law travels frequently to Pakistan to care for her ailing mother and stays two to three months at a time. His father-in-law travels to Pakistan for special occasions every several years; his mother and brother both live in the United States. His parents-in-law do not intend to move back to Pakistan. They provide about $5,000 annually in financial support to several people in Pakistan who have worked as housekeepers, drivers, security for their property, and as a caregiver for his spouse's maternal grandmother.

(Answer at 2-4; GE 1 at 30-32, GE 3 at 21, 47-62, 70-73; Tr. 127-29, 151-52, 212-18, 233-35)

SOR ¶ 1.c. Applicant's father-in-law's cousin's husband was a colonel in the Pakistani Army and served in Pakistan's Inter-Services Intelligence (ISI); he retired from military service no later than 2006. Applicant and his spouse have briefly spoken to him on several occasions, most recently in December 2021 at his granddaughter's wedding. In 2022, Applicant, his spouse, and members of her immediate family cut off all communication with him because he was disrespectful to a family member and supportive of Uncle2 with whom they had cut off communications in 2021 over a significant matter. (Answer at 4-5; GE 3 at 42-47, 69, 73; Tr. 62-68, 138-39, 160-61, 176-208)

SOR ¶ 1.d. Applicant's father-in-law's cousin is a citizen and resident of Pakistan. He was a helicopter pilot in the Pakistani Air Force and retired from military service in the early 2000's. His spouse was never close to this relative. Applicant and his spouse have briefly spoken to him on several occasions since 2016. Applicant, his spouse and her immediate family cut off all communications with him because he was disrespectful to a family member and supportive of Uncle2 with whom they had cut off communications in 2021 over a significant matter. (Answer at 5-6; GE 3 at 3, 42-43, 69, 73; Tr. 68-77, 134-37, 178-208)

SOR ¶ 1. e. Applicant's wife's former nanny is a citizen and resident of Pakistan. She speaks no English; Applicant and his wife have provided her with about $70 in monthly financial support since 2022 to assist with her kids' tuition. Applicant met her once and she communicates her thanks to his spouse monthly for their financial assistance. His parents-in-law provide her with some compensation for in-home care she has provided for his wife's maternal grandmother. (Answer at 6-7; GE 3 at 18, 47; Tr. 73-79, 173-74, 213-20, 233-35)

SOR ¶ 1.f. Applicant's spouse's maternal grandmother is a citizen and resident of Pakistan and citizen of the United Kingdom. She is a retired medical professional who practiced in the United Kingdom and Pakistan. She has suffered from dementia since 2016 and has been diagnosed with Alzheimer's Disease. She owns the home she lives in, but Applicant and his spouse do not know the property's value. Her maternal grandfather passed away in 2022. He was a citizen and resident of Pakistan and citizen of the United Kingdom. He was a medical professional and had been the senior medical officer for a company partly owned by the government of Pakistan. Applicant has annual contact with his spouse's maternal grandmother, and his spouse communicates with her more frequently. (Answer at 7-8; GE 1 at 35-36, 38-39, GE 3 at 6; Tr. 79-86, 118, 152-53, 176, 181-83, 190, 219-20, 233)

SOR ¶ 1.g. Applicant's spouse's paternal grandmother is a citizen of Pakistan and the United Kingdom, and a lawful permanent resident of the United States. She is a homemaker, lives with her son, speaks no English, and owns no property. Her home in Pakistan was sold when her husband passed. She receives no financial support from

Applicant and his spouse, and except for a $200 wedding gift has not provided them with any financial support. He and his spouse visit her in the United States quarterly. (Answer at 8; GE 1 at 44-45, GE 3 at 7, 12; Tr. 86-90)

SOR ¶ 1.h. Applicant's spouse's Uncle1, Aunt1, and their two daughters are citizens of Pakistan and lawful permanent residents of the United States. They moved to the United States sometime prior to October 2023 and own a home in Pakistan. Uncle1 works for an American company, and Aunt1 is unemployed. One of their children lives and works in the United States and the other lives with her husband in a British territory. Applicant has quarterly contact with the family, and his wife communicates with them monthly. (Answer at 8-9; GE 1 at 32-34, 36-37, 39-42, GE 3 at 9, 12; Tr. 90-104, 161-64, 194-98)

Applicant's spouse's Aunt2, Uncle2, and their son are citizens of Pakistan and lawful permanent residents of the United States. Applicant and his spouse used to visit them every several months at their U.S. residence. However, Applicant, his spouse and members of her immediate family severed contact with this part of her family in late 2021 over significant issues with Uncle2, Aunt2, and their son. (Answer at 9; GE 1 at 34-35, 43-47, GE 3 at 12; Tr. 67-72, 104-08, 128, 141-43, 178-82, 194-200)

SOR ¶ 1.i. Applicant's spouse's Uncle3 is a citizen and part-time resident of Pakistan and a citizen and part-time resident of the United Kingdom. His primary residence and his employer are in the United Kingdom, but for about two years before the hearing he spent about half his time in Pakistan to help care for his mother. Applicant met him in 2019 and has spoken with him once a year since; his spouse communicates with Uncle3 quarterly. Uncle3 owns a condominium in the United Kingdom and works for a British company. Applicant does not believe that he owns any property in Pakistan. His wife communicates with Uncle3 monthly to quarterly. (Answer at 9-10; GE 1 at 42-43, GE 3 at 40; Tr. 108-11, 143-44, 161-62, 193-96)

SOR ¶ 1.j. One of Applicant's spouse's best friends since high school is a citizen and resident of Pakistan. She is an attorney and the daughter of a prominent Government official in Pakistan. She has primarily lived in a different city than her father. Applicant has interacted with his spouse's friend twice, at his wedding in 2019 and at her wedding in 2021. Applicant's spouse communicates with her good friend about every other week. She has interacted with her friend's father on two occasions; she met him in about 2011 and greeted him at her friend's wedding in Pakistan in 2021. (Answer at 10-11; GE 3 at 19-20; Tr. 111-18, 137-38, 159-64, 184-89, 208-11)

Applicant's annual salary is about $153,000 and his spouse's is about $140,000. Their combined net worth is about $600,000, including about $100,000 in liquid assets, $260,000 in retirement accounts, $100,000 in an investment account, and about $140,000 equity in a condominium they purchased in 2021. Their assets are all in the United States. (GE 3 at 51; Tr. 42, 132, 153-57; AE L)

## Pakistan

I have taken administrative notice that Pakistan is a parliamentary federal republic with whom the United States has had diplomatic relations since 1947. The parliament elected a new prime minister and head of government in April 2022. The election appears to have been conducted fairly and in accordance with the Pakistani constitution. (HE III-IV; AE M)

Terrorist attacks in Pakistan are a continuing threat and have targeted U.S. diplomats and diplomatic facilities. Terrorism increased in 2022. Pakistan has taken some action against terrorism, but its implementation of United Nations sanctions against terrorist entities has been uneven. The United States continues to urge Pakistan to take decisive action against terrorist groups. The Department of State travel advisory for travel to Pakistan is Level 3 (reconsider travel due to terrorism) and Level 4 (Do not travel) for some areas of Pakistan which border Afghanistan and India.

The United States is Pakistan's largest export market, importing more than $5 billion in Pakistani goods in 2021. The United States has also been a leading investor in Pakistan for the past 20 years. However, Pakistan needs to strengthen its business regulation, including intellectual property protection.

Pakistan has a poor human-rights record and suffers from wide-spread government corruption. U.S. civilian assistance to Pakistan has focused on governance, the rule of law, treatment of refugees, law enforcement, and countering infectious diseases such as COVID-19.

Pakistan is a nuclear-armed country. There have been several recent instances of illegal efforts by "front companies" and U.S. citizens to export sensitive equipment, information, and technology from the United States to nuclear research agencies in Pakistan. The United States has imposed controls on various exports, reexports and transfers in Pakistan regarding six categories of items and designated four entities for sanctions pursuant to Exec. Or. 13382, which targets proliferators of weapons of mass destruction and their means of delivery.

Pakistan is designated under U.S. law as a Major Non-NATO Ally (MNNA) which provides certain benefits in the areas of defense trade and security cooperation. The MNNA designation is a powerful symbol of the close relationship between the United States and Pakistan. While MNNA status provides military and economic privileges, it does not entail any security commitments. The United States works closely with Pakistan on a wide array of issues ranging from energy, trade and investment, health, clean energy and combating the climate crisis, to Afghanistan stabilization and counterterrorism.

**Guideline H, Drug Involvement**

Applicant admitted that from August to October 2019, he used marijuana about five times while holding a sensitive position and while granted access to classified information. He smoked marijuana while alone in his apartment. At the time, he knew that as a security clearance holder he was prohibited from using marijuana. He disclosed his marijuana use in his June 2021 SCA and discussed it with a government investigator in August 2021. He provided additional and consistent detail about his marijuana use in his September 2023 response to interrogatories, in his Answer, and at hearing. (GE 1 at 61-63, GE 3 at 6, 76-81; Answer at 11-13; Tr. 27-47, 121- 27, 146-73)

From at least 2018 until 2020, Applicant worked and lived in a state where it was legal to grow and use marijuana recreationally. In December 2018, a relative gifted marijuana grown in the relative's garden to Applicant and other family members. Applicant received less than an ounce of marijuana and stored it in his home until his first use in August 2019. After last using marijuana in October 2019, he placed the remaining marijuana in a drawer and forgot about it while he prepared for his wedding and relocation to another state for a new job. He disposed of the remaining marijuana in February 2020 after moving to a state where recreational marijuana use was prohibited. (GE 1 at 61-63, GE 3 at 6, 76-81; Answer at 11-13; Tr. 27-47, 121-27, 146-73)

Applicant decided to smoke the marijuana out of curiosity because he was feeling isolated and experiencing stress from a long-distance relationship with his now wife. She had been experiencing significant stress for about two years during which he primarily focused on providing her with emotional support and on his job. He described his decision to smoke marijuana as "terrible and selfish." Since then, he and his wife have worked through many challenges including the loss of family members. Marriage and fatherhood have honed his focus on family, setting a good example for his child, and working to become a subject matter expert on the contract he supports. He now manages stress through exercise and spending time with his wife and son. (GE 1 at 61-63, GE 3 at 6, 76-81; Answer at 11-13; Tr. 27-47, 121-27, 146-73)

Applicant has not otherwise misused a controlled substance. He did not enjoy smoking marijuana or being high and has experienced no cravings to use it again. He stated his intent to not use marijuana in the future. Since 2018, he has had limited communications with the relative who gifted him marijuana. Before the hearing Applicant notified that relative that if he attempted to gift or otherwise distribute a controlled substance in his presence, Applicant would leave the event and cut ties with him. He has informed his wife, supervisor, and a coworker of his marijuana use. (GE 1 at 61-63, GE 3 at 6, 76-81; Answer at 11-13; Tr. 27-47, 121-27, 146-59, 169-73, 237-47; AE N)

Applicant submitted evidence that he tested negative for cannabinoids and other controlled substances in June 2024 and November 2024. He submitted a substance abuse evaluation performed by a certified alcohol and drug counselor that concluded his use of marijuana did not constitute active substance use disorder and no treatment was

recommended. He submitted a statement declaring his intent to refrain from substance misuse and acknowledging any future substance misuse would be grounds for revocation of his national security eligibility. (AE A - AE D)

**Character Evidence**

Applicant's supervisor and a co-worker testified. Both are accomplished engineers with extensive defense contractor experience and have held top secret security clearances for many years. Both were aware of Applicant's past marijuana use and of his connections to Pakistani citizens alleged in the SOR because he told them. They testified favorably about his technical skills, trustworthiness, reliability, judgment, adherence to rules including those applicable to handling classified information, and his loyalty to the United States. They recommended he retain his job and security clearance. (Tr. 237-50)

Applicant's spouse testified favorably about his values, character, honesty, stability, commitment to maintaining his eligibility for access to classified information, and his commitment to their marriage and their child. (Tr. 169-76)

Applicant submitted performance appraisals for 2020 through 2023 which comment favorably on his contributions, initiative, judgment, integrity, compliance with rules including security regulations, technical proficiency, problem-solving skills, and leadership potential. His overall performance ratings have been "met" or "exceeds expectations." He has earned multiple achievement and performance awards. He has also completed multiple professional education courses. (AE E - AE K)

## Policies

"[N]o one has a 'right' to a security clearance." *Department of the Navy v. Egan*, 484 U.S. 518, 528 (1988). As Commander in Chief, the President has the authority to "control access to information bearing on national security and to determine whether an individual is sufficiently trustworthy" to have access to such information. *Id.* at 527. The President has authorized the Secretary of Defense or his designee to grant applicants eligibility for access to classified information "only upon a finding that it is clearly consistent with the national interest to do so." Exec. Or. 10865 § 2.

Eligibility for a security clearance is predicated upon the applicant meeting the criteria contained in the adjudicative guidelines. These guidelines are not inflexible rules of law. Instead, recognizing the complexities of human behavior, an administrative judge applies these guidelines in conjunction with an evaluation of the whole person. An administrative judge's overarching adjudicative goal is a fair, impartial, and commonsense decision. An administrative judge must consider all available and reliable information about the person, past and present, favorable and unfavorable.

The Government reposes a high degree of trust and confidence in persons with access to classified information. This relationship transcends normal duty hours and

endures throughout off-duty hours. Decisions include, by necessity, consideration of the possible risk that the applicant may deliberately or inadvertently fail to safeguard classified information. Such decisions entail a certain degree of legally permissible extrapolation about potential, rather than actual, risk of compromise of classified information.

Clearance decisions must be made "in terms of the national interest and shall in no sense be a determination as to the loyalty of the applicant concerned." Exec. Or. 10865 § 7. Thus, a decision to deny a security clearance is merely an indication the applicant has not met the strict guidelines the President and the Secretary of Defense have established for issuing a clearance.

Initially, the Government must establish, by substantial evidence, conditions in the personal or professional history of the applicant that may disqualify the applicant from being eligible for access to classified information. The Government has the burden of establishing controverted facts alleged in the SOR. *See Egan*, 484 U.S. at 531. "Substantial evidence" is "more than a scintilla but less than a preponderance." *See v. Washington Metro. Area Transit Auth.*, 36 F.3d 375, 380 (4th Cir. 1994). The guidelines presume a nexus or rational connection between proven conduct under any of the criteria listed therein and an applicant's security suitability. *See* ISCR Case No. 15-01253 at 3 (App. Bd. Apr. 20, 2016).

Once the Government establishes a disqualifying condition by substantial evidence, the burden shifts to the applicant to rebut, explain, extenuate, or mitigate the facts. Directive ¶ E3.1.15. An applicant has the burden of proving a mitigating condition, and the burden of disproving it never shifts to the Government. *See* ISCR Case No. 02-31154 at 5 (App. Bd. Sep. 22, 2005).

An applicant "has the ultimate burden of demonstrating that it is clearly consistent with the national interest to grant or continue his security clearance." ISCR Case No. 01-20700 at 3 (App. Bd. Dec. 19, 2002). "[S]ecurity clearance determinations should err, if they must, on the side of denials." *Egan*, 484 U.S. at 531.

## Analysis

### Guideline B, Foreign Influence

The SOR alleges that Applicant's: (1) spouse, mother-in-law, and father-in-law are citizens of Pakistan and the United States, travel to Pakistan periodically, have numerous friends and relatives who are citizens and/or residents of Pakistan, that his parents-in-law own a home in Pakistan valued at about $150,000 and provide financial support to citizens or residents of Pakistan, and to organizations located in Pakistan (SOR ¶¶ 1.a-1.b); (2) father-in-law's cousin's husband (retired Pakistani Army Colonel who served in the ISI), his father-in-law's cousin (retired Pakistani Air Force helicopter pilot), and his spouse's friend, who is the daughter of a prominent government official, are all citizens and

residents of Pakistan (SOR ¶¶ 1.c-1.d, 1.j); (3) spouse's former nanny, maternal grandparents, and Uncle3 are citizens and residents of Pakistan and that Applicant and his spouse provide the former nanny with about $600 a year in financial support (SOR ¶¶ 1.e-f, 1.i); and (4) spouse's paternal grandmother, Aunt1, Uncle1, Aunt2, Uncle2, and their children are citizens of Pakistan (SOR ¶¶ 1.g-1.h).

The security concern under this guideline is set out in AG ¶ 6:

> Foreign contacts and interests, including, but not limited to, business, financial, and property interests, are a national security concern if they result in divided allegiance. They may also be a national security concern if they create circumstances in which the individual maybe manipulated or induced to help a foreign person, group, organization, or government in a way inconsistent with U.S. interests or otherwise made vulnerable to pressure or coercion by any foreign interest. Assessment of foreign contacts and interests should consider the country in which the foreign contact or interest is located, including, but not limited to, considerations such as whether it is known to target U.S. citizens to obtain classified or sensitive information or is associated with a risk of terrorism.

Guideline B is not limited to countries hostile to the United States. "The United States has a compelling interest in protecting and safeguarding classified information from any person, organization, or country that is not authorized to have access to it, regardless of whether that person, organization, or country has interests inimical to those of the United States." ISCR Case No. 02-11570 at 5 (App. Bd. May 19, 2004). Nevertheless, the nature of a nation's government and its relationship with the United States are relevant in assessing the likelihood that an applicant's family members are vulnerable to government coercion. The risk of coercion, persuasion, or duress is significantly greater if the foreign country has an authoritarian government, a family member is associated with or dependent upon the government, or the country is known to conduct intelligence operations against the United States. In considering the nature of the government, an administrative judge must also consider any terrorist activity in the country at issue. *See* ISCR Case No. 02-26130 at 3 (App. Bd. Dec. 7, 2006).

There is a rebuttable presumption that a person has ties of affection for, or obligation to, the immediate family members of their spouse. *See* ISCR Case No. 10-09986 at 3 (App. Bd. Dec. 15, 2011). "[A]n applicant's ties of affections for his or her in-laws has less to do with the applicant's feelings towards that family, but instead contemplates the bonds of affection that the applicant's spouse holds for his or her immediate family members, which is then imputed to the applicant as a result of the marital relationship. This is true even though an applicant has minimal or no direct contact with the relatives." ISCR Case No. 19-02096 at 7 (App. Bd. Feb. 29, 2024).

AG ¶ 7 identifies conditions that could raise security concerns and that may be disqualifying under this guideline. The following are potentially applicable:

(a) contact, regardless of method, with a foreign family member, business or professional associate, friend, or other person who is a citizen of or resident in a foreign country if that contact creates a heightened risk of foreign exploitation, inducement, manipulation, pressure, or coercion;

(b) connections to a foreign person, group, government, or country that create a potential conflict of interest between the individual's obligation to protect classified or sensitive information or technology and the individual's desire to help a foreign person, group, or country by providing that information or technology;

(e) shared living quarters with a person or persons, regardless of citizenship status, if that relationship creates a heightened risk of foreign inducement, manipulation, pressure, or coercion; and

(f) substantial business, financial, or property interests in a foreign country, or in any foreign owned or foreign-operated business that could subject the individual to a heightened risk of foreign influence or exploitation or personal conflict of interest.

AG ¶¶ 7(a), 7(e), and 7(f) all require substantial evidence of a "heightened risk." The "heightened risk" required to raise one of these disqualifying conditions is a relatively low standard. "Heightened risk" denotes a risk greater than the normal risk inherent in having a family member living under a foreign government. *See, e.g.*, ISCR Case No. 12-05839 at 4 (App. Bd. Jul. 11, 2013). "Heightened risk" is not a high standard. *See, e.g.*, ISCR Case No.17-03026 at 5 (App. Bd. Jan. 16, 2019). It is a level of risk one step above a State Department Level 1 travel advisory ("exercise normal precaution") and equivalent to the Level 2 advisory ("exercise increased caution"). State Department travel advisories for travel to Pakistan are Level 3 (reconsider travel due to terrorism) and Level 4 (Do not travel) for some areas which border Afghanistan and India.

Applicant's cohabitation with his spouse and connections to her relatives and friends who are citizens and/or residents of Pakistan, are sufficient to raise AG ¶¶ 7(a), 7(b), and 7(e). His parents-in-law's home in Pakistan valued at $150,000 (including his spouse's potential financial interest in that property) are sufficient to raise AG ¶ 7(f). Applicant and his spouse's annual financial support ($840) to her former nanny in Pakistan is insufficient to constitute a "substantial" business or financial interest within the meaning of AG ¶ 7(f) but is relevant to assessment of his spouse's contact with and connection to her former nanny under AG ¶¶ 7(a) and 7(b).

Based on Applicant's admissions and the evidence set out above, I conclude that the disqualifying conditions in AG ¶ 7(a), 7(b), 7(e), and 7(f) are established. The following mitigating conditions under AG ¶ 8 are potentially applicable:

(a) the nature of the relationships with foreign persons, the country in which these persons are located, or the positions or activities of those persons in that country are such that it is unlikely the individual will be placed in a position of having to choose between the interests of a foreign individual, group, organization, or government and the interests of the United States;

(b) there is no conflict of interest, either because the individual's sense of loyalty or obligation to the foreign person, or allegiance to the group, government, or country is so minimal, or the individual has such deep and longstanding relationships and loyalties in the United States, that the individual can be expected to resolve any conflict of interest in favor of the U.S. interest;

(c) contact or communication with foreign citizens is so casual and infrequent that there is little likelihood that it could create a risk for foreign influence or exploitation; and

(f) the value or routine nature of the foreign business, financial, or property interests is such that they are unlikely to result in a conflict and could not be used effectively to influence, manipulate, or pressure the individual.

AG ¶¶ 8(a) and 8(b) are established for SOR ¶¶ 1.a-1.i.

Applicant's spouse and his spouse's parents, paternal grandmother, Aunt1, Uncle1, Aunt 2, Uncle2, and their children are citizens of Pakistan but reside in the United States (SOR ¶¶ 1.a-1.b and 1.g-1.h). They are not affiliated with the Pakistani government, military or intelligence services, and a conflict of interest is unlikely.

Applicant's spouse and his parents-in-law are citizens and residents of the United States. Applicant's spouse is a prominent professional, appreciates the freedoms she has in the United States, and has no interest in living in Pakistan because her personal values do not align with cultural or societal expectations (SOR ¶ 1.a). His parents-in-law are also employed in the United States and their primary connection to Pakistan is that his spouse's maternal grandmother lives there. Although they own a house in Pakistan worth about $150,000, it is devoid of furnishings, and they plan to sell it. They do not intend to move back to Pakistan. Although they provide about $5,000 annually in financial support to several people in Pakistan who have worked as housekeepers, drivers, security for their property, and as a caregiver for his spouse's maternal grandmother, their three children are U.S. citizens and residents (SOR ¶ 1.b). Applicant, his spouse and her immediate family severed contact with Uncle2 and his immediate family in 2021 because of a significant and divisive matter (SOR ¶ 1.h).

Applicant's and his spouse's relationship with his father-in-law's cousin's husband (retired Pakistani Army colonel who served in the ISI) and to his father-in-law's cousin (retired Pakistani Air Force helicopter pilot) are such that a conflict of interest is unlikely

(SOR ¶¶ 1.c-1.d). Both are citizens and residents of Pakistan and retired from military service at least 20 years ago. Applicant, his spouse and her immediate family severed contact with them in 2022 after they disrespected an immediate family member and were supportive of Uncle2 in a significant and divisive matter.

Applicant's spouse's maternal grandmother and former nanny are citizens and residents of Pakistan (SOR ¶¶ 1.e-1.f). His spouse's maternal grandmother has suffered from dementia since 2016, has been diagnosed with Alzheimer's Disease, and requires at home care. Applicant's spouse's former nanny provides care for his spouse's maternal grandmother and he and his spouse provide the former nanny about $840 annually to help her pay her children's tuition. Applicant's spouse's Uncle3 is a citizen and part-time resident of Pakistan and a citizen and part-time resident of the United Kingdom (SOR ¶ 1.i). Although Uncle3 spent about half of his time in Pakistan during the two years prior to the hearing to help care for his mother, his primary residence is in the United Kingdom where he owns a condominium and works for a British company. They are not affiliated with the Pakistani government, military or intelligence services, and a conflict of interest is unlikely (SOR ¶¶ 1.e-1.f, and 1.i).

Additionally, Applicant has been lifelong U.S. citizen, resided and worked exclusively in the United States, and has held a security clearance since at least January 2015. He has forged deep and longstanding personal and professional relationships in the United States and dedicated himself to his spouse's and child's future in the United States. His deep and longstanding loyalties to his career, wife, child and to the United States are such that he can be expected to resolve any potential conflict of interest in favor of the United States.

AG ¶ 8(a) is not fully established for Applicant's spouse's friend who is a citizen and resident of Pakistan and the daughter of a prominent Government official in Pakistan (SOR ¶ 1.j); however, AG ¶ 8(b) is established. She has been one of Applicant's spouse's best friends since high school, is an attorney, and her father is a prominent Government official in Pakistan. Applicant has only met her twice, but his spouse communicates with her every other week.

Although Applicant has no personal connection to his spouse's friend's father and his spouse has met him only twice, the depth of his spouse's relationship with her close friend and the prominence of her friend's father's position in government, I find that through association with such persons Applicant could come to the attention of those interested in acquiring U.S. protected information and that the evidence is insufficient to find the potential for a conflict of interest unlikely. *See* ISCR Case No. 11-12623 at 2-5 (App. Bd. Feb. 2, 2015) ("an applicant's ties, either directly or through a family member, to persons of high rank in a foreign government or military are of particular concern, insofar as it is foreseeable that through an association with such persons the applicant could come to the attention of those interested in acquiring U.S. protected information.") (citations omitted). However, Applicant's deep and longstanding loyalties to his career,

wife, child, and to the United States are such that he can be expected to resolve any potential conflict of interest in favor of the United States.

AG ¶ 8(c) is established for Applicant's spouse's friends who are citizens and/or residents of Pakistan alleged in SOR ¶ 1.a because her contact or communication with them is casual and infrequent. His spouse's relationship with her close friend identified by name in SOR ¶ 1.j is addressed separately.

AG ¶ 8(c) is established for the citizens and residents of Pakistan alleged in SOR ¶¶ 1.c-1.d. Applicant and his spouse terminated contact with his father-in-law's cousin's husband (retired Army Colonel who had served in ISI) and his father-in-law's cousin (retired air force pilot) in 2022 because they were disrespectful to a family member and supportive of Uncle2 with whom they had cut off communications in 2021 over a significant matter (SOR ¶¶ 1.c-1.d).

AG ¶¶ 8(c) is not fully established for SOR ¶¶ 1.e-1.f, and 1.j. Applicant's spouse's contact and communication (imputed to him) with her maternal grandmother, former nanny, and close friend are neither casual nor infrequent. However, Applicant and his spouse's contact and communication with his spouse's close friend's father, a prominent Government official in Pakistan, is casual and infrequent.

AG ¶ 8(f) is established. The value of Applicant's spouse's parents' property in Pakistan (about $150,000) and her possible inheritance of any portion of that property are substantially less than her financial and property interests in the United States (about $600,000) and their two lucrative careers. Under these circumstances and considering the relationship between the U.S. and Pakistan and Applicant's parents-in-law's desire to sell the property they own in Pakistan, these potential interests are unlikely to result in a conflict and could not be used effectively to influence, manipulate, or pressure the Applicant.

**Guideline H, Drug Involvement and Substance Misuse**

The concern under this guideline is set out in AG ¶ 24:

> The illegal use of controlled substances, to include the misuse of prescription and non-prescription drugs, and the use of other substances that cause physical or mental impairment or are used in a manner inconsistent with their intended purpose can raise questions about an individual's reliability and trustworthiness, both because such behavior may lead to physical or psychological impairment and because it raises questions about a person's ability or willingness to comply with laws, rules, and regulations. *Controlled substance* means any "controlled substance" as defined in 21 U.S.C. 802. *Substance misuse* is the generic term adopted in this guideline to describe any of the behaviors listed above.

Appellant's admissions establish the following disqualifying conditions under AG ¶ 25 of this guideline:

> (a) any substance misuse (see above definition);
>
> (c) illegal possession of a controlled substance, including cultivation, processing, manufacture, purchase, sale, or distribution; or possession of drug paraphernalia; and
>
> (f) any illegal drug use while granted access to classified information or holding a sensitive position [i.e. a position that requires a security clearance].

The following mitigating conditions under AG ¶ 26 are potentially applicable:

> (a) the behavior happened so long ago, was so infrequent, or happened under such circumstances that it is unlikely to recur or does not cast doubt on the individual's current reliability, trustworthiness, or good judgment;
>
> (b) the individual acknowledges his or her drug involvement and substance misuse, provides evidence of actions taken to overcome this problem, and has established a pattern of abstinence, including, but not limited to:
>
> > (1) disassociation from drug-using associates and contacts;
> >
> > (2) changing or avoiding the environment where drugs were used; and
> >
> > (3) providing a signed statement of intent to abstain from all drug involvement and substance misuse, acknowledging that any future involvement or misuse is grounds for revocation of national security eligibility.

Conduct not alleged in the SOR, including Applicant's testimony that he possessed marijuana from December 2018 to February 2020 before disposing of it was not considered for disqualifying purposes. However, this conduct may be considered for the following five purposes: (a) to assess his credibility; (b) to evaluate his evidence of extenuation, mitigation, or changed circumstances; (c) to consider whether he has demonstrated successful rehabilitation; (d) to decide whether a particular provision of the Adjudicative Guidelines is applicable; or (e) for whole-person analysis. *See* ISCR Case No. 03-20327 at 4 (App. Bd. Oct. 26, 2006) (citations omitted).

AG ¶¶ 26(a) and 26(b) are established. Applicant used marijuana on five occasions from August to October 2019 and possessed it from December 2018 to February 2020. He has not otherwise possessed or misused a controlled substance. He voluntarily

reported and has consistently explained his possession and use of marijuana since June 2021. He tested negative for controlled substances in June and November 2024, and received a favorable substance abuse evaluation in December 2024. He submitted a signed statement of intent to abstain from all substance misuse, avoided environments where marijuana is used, and acknowledged that future substance misuse is grounds for revocation of his security clearance. His substance misuse is unlikely to recur and no longer casts doubt on his reliability, trustworthiness, or good judgment.

**Whole-Person Concept**

Under AG ¶ 2(c), the ultimate determination of whether to grant eligibility for a security clearance must be an overall commonsense judgment based upon careful consideration of the guidelines and the whole-person concept. In applying the whole-person concept, an administrative judge must evaluate an applicant's eligibility for a security clearance by considering the totality of the applicant's conduct and all relevant circumstances. An administrative judge should consider the nine adjudicative process factors listed at AG ¶ 2(d):

> (1) the nature, extent, and seriousness of the conduct; (2) the circumstances surrounding the conduct, to include knowledgeable participation; (3) the frequency and recency of the conduct; (4) the individual's age and maturity at the time of the conduct; (5) the extent to which participation is voluntary; (6) the presence or absence of rehabilitation and other permanent behavioral changes; (7) the motivation for the conduct; (8) the potential for pressure, coercion, exploitation, or duress; and (9) the likelihood of continuation or recurrence.

I have incorporated my comments under Guidelines B and H in my whole-person analysis and applied the adjudicative factors in AG ¶ 2(d). I considered the entire record, including Applicant's age, education, work history, security clearance history, and character evidence.

Applicant was candid, sincere, and credible at the hearing. I am persuaded by his testimony, corroborated by other record evidence including his spouse's testimony, performance evaluations and character evidence, that there is not a question as to his loyalty to the United States, his valuable contributions to a defense contractor, or his sincere intent to resolve any potential conflict of interest in favor of U.S. interests. It is clear from the evidence that he has dedicated himself to his family, his job, and the mission he supports.

I considered that Applicant's spouse has lived in the United States since she was two years old, except when she returned to Pakistan with her parents for about six years due to their aging family members and until she completed high school. She returned to the United States in 2013, attended college, has worked for the same company since 2017 and has established herself as a prominent member of her profession. I considered

that Applicant's child, spouse, her two siblings, and her parents are citizens and residents of the United States. I considered that all her known financial interests are in the United States and that she regularly votes in U.S. elections.

I considered that Applicant's spouse has no interest in living in Pakistan because her personal values do not align with cultural and societal expectations and she appreciates the freedoms she has as a woman in the United States. I considered that she has no known financial interests in Pakistan, does not believe that she stands to inherit property from her parents or other relatives in Pakistan and found her statement of intent to sell any property she might inherit in Pakistan credible. I considered that she provides about $840 in financial support to help pay tuition costs for her former nanny's children in Pakistan. I considered that she plans to travel to Pakistan in the future for significant events such as the marriage of a close friend or if her grandmother's health worsens.

I also considered that Applicant and his spouse have some cultural and family connection to Pakistan, but no feelings of allegiance to the government. Their primary family connections are his spouse's maternal grandmother (who is suffering from Alzheimer's Disease), his spouse's former nanny (who provides care for her maternal grandmother) and Uncle3, a citizen of Pakistan and the United Kingdom, who has resided part-time in Pakistan to care for his mother/Applicant's spouse's maternal grandmother but who is employed by a British company and whose primary residence is a condominium he owns in the United Kingdom.

After weighing the disqualifying and mitigating conditions under Guidelines B and H, and evaluating all the evidence in the context of the whole person, I conclude Applicant has mitigated foreign influence and drug involvement security concerns.

## Formal Findings

I make the following formal findings on the allegations in the SOR:

| | |
|---|---|
| Paragraph 1, Guideline B (Foreign Influence): | FOR APPLICANT |
| Subparagraphs 1.a-1.j: | For Applicant |
| Paragraph 2, Guideline H, (Substance misuse): | FOR APPLICANT |
| Subparagraph 2.a: | For Applicant |

## Conclusion

I conclude that it is clearly consistent with the national security interests of the United States to continue Applicant's eligibility for access to classified information. Eligibility for access to classified information is granted.

Eric C. Price
Administrative Judge